

Employing in France

What You Need to Know · Employment Hero HeroForce EOR · July 2026

What does the EOR handle for you?

- **Employment contracts** — compliant contracts (CDI/CDD) referencing the applicable collective bargaining agreement (convention collective)
- **Monthly payroll** — salary payments in EUR, itemised bulletins de paie
- **Tax withholding** — prélèvement à la source (PAYE) income tax deducted and remitted monthly
- **Cotisations sociales** — the full URSSAF/AGIRC-ARRCO social charge stack
- **Leave and termination management** — notice periods, entitlements and indemnité de licenciement guidance

Employment Conditions

Contracts & Probation

Most French employees are covered by a sector convention collective on top of the Code du travail, which frequently sets pay scales, notice periods and other terms above the statutory floor. Probation (période d'essai) length is capped by category.

Category	Maximum Probation (renewable once)	Legal Basis
Blue-collar / employees (ouvriers/employés)	2 months	Code du travail, Art. L1221-19
Supervisors / technicians	3 months	Code du travail, Art. L1221-19
Managers (cadres)	4 months	Code du travail, Art. L1221-19

Working Hours & Overtime

Rule	Detail	Authority
Legal working week	35 hours (many cadres work under a "forfait jours" annual-day arrangement instead)	Code du travail
Overtime premium (hrs 36–43/week)	125%	Code du travail
Overtime premium (44+ hrs/week)	150%	Code du travail

Minimum Wage (SMIC, 2026)

Measure	Rate	Notes
SMIC (from 1 January 2026)	€12.02/hour (€1,823.03/month, 35-hr week)	+1.18% standard indexation
SMIC (from 1 June 2026)	€12.31/hour (€1,867.02/month)	+2.41% additional revision announced mid-year
Social security ceiling (PMSS)	€4,005/month (€48,060/year)	Reference threshold for capped contributions

Leave Entitlements

Leave Type	Entitlement	Who Pays	Key Condition
Annual Leave	5 weeks/year (2.5 days/month worked)	Employer	Standard reference period 1 June–31 May unless CBA states otherwise
Maternity Leave	16 weeks minimum (longer for 3rd+ child or multiples)	Social Security (Sécurité Sociale)	Employer commonly tops up to full salary under CBA
Paternity Leave	25 days (32 for multiple births)	Social Security	Includes 4 mandatory days immediately after birth
Sick Leave	Statutory daily allowance from Social Security after a 3-day waiting period	Social Security + employer top-up under most CBAs	Requires a medical certificate

Payroll, Tax & Contributions

Total Cost Example — USD \$3,000 Gross Monthly Salary

Cost Item	Amount (USD)	% of Gross
Gross salary	\$3,000.00	100%
Employer social charges (illustrative, ~42%, above the SMIC reduction zone)	\$1,260.00	42.00%
EOR service fee (HeroForce, Tier 2)	\$600.00	20.00%
Estimated total monthly cost	~\$4,860.00	~162.0%

HeroForce EOR service fee shown at USD \$600 per employee per month (Tier 2 pricing), no setup fee. France's employer social charges range from a heavily reduced rate near the SMIC (via the "Fillon reduction") up to 42–45% for salaries above roughly €5,600 gross/month — this example assumes a salary well above the reduction zone. Employee deductions (withheld separately) include ~22–25% in social/pension contributions and progressive income tax under PAYE.

Income Tax (Impôt sur le Revenu, 2026)

France withholds income tax at source (prélèvement à la source) directly from payroll, based on a rate calculated by the tax administration from the employee's prior return, using the household "quotient familial" system.

Band (per household share)	Rate
Up to ~€11,500	0%
~€11,500 – €29,300	11%
~€29,300 – €83,800	30%
~€83,800 – €180,300	41%
Above ~€180,300	45%

Non-residents are subject to a minimum 20% withholding rate on French-source income.

Termination & Separation

Notice Periods (Typical, CBA-Dependent)

Category / Tenure	Typical Notice	Key Rule
Employees, under 2 years' service	1 month	Code du travail minimum; CBA may extend
Employees, 2+ years' service	2 months	Code du travail minimum; CBA may extend
Managers (cadres)	Often 3 months	Set by the applicable convention collective

Statutory Severance (Indemnité de Licenciement)

Years of Service	Statutory Minimum
Up to 10 years	1/4 month's salary per year of service
Beyond 10 years	1/3 month's salary per year (for years beyond the 10th)

★ **HERO TIP**

The applicable convention collective is often more generous than the statutory Code du travail floor for both notice and severance — confirm the correct CBA for the role before quoting termination terms to a client. French labour courts (Conseil de Prud'hommes) also apply a capped compensation scale (barème Macron) for unjustified dismissal, but procedural defects can still expose employers to additional damages outside that cap.

Public Holidays 2026

France observes 11 public holidays in 2026. Only 1 May (Labour Day) is a guaranteed paid day off for all employees by law — the others are customarily granted but technically subject to sector/CBA rules.

Date	Holiday	Type
1 January	New Year's Day	National
6 April	Easter Monday	National
1 May	Labour Day (statutory paid holiday for all)	National
8 May	Victory in Europe Day	National
14 May	Ascension Day	National
25 May	Whit Monday	National
14 July	Bastille Day	National
15 August	Assumption Day	National
1 November	All Saints' Day	National
11 November	Armistice Day	National
25 December	Christmas Day	National

Alsace-Moselle observes two additional holidays (Good Friday and 26 December/St. Stephen's Day) under a historical regional exception.

Ready to hire in France?

HeroForce by Employment Hero is an Employer of Record solution that handles hiring, contracts, compliance and payroll across 180+ countries.

Onboard your first France employee in as little as one to two weeks — HeroForce EOR service fee: **USD \$600** per employee per month, no setup fee (Tier 2).